Dairy World Terms and Conditions

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Territory: Finland and the European Economic Area (EEA)

Effective date: On first publication.

PLEASE READ THESE TERMS AND CONDITIONS CAREFULLY. BY ACCEPTING THEM, YOU ENTER INTO A BINDING AGREEMENT WITH THE PUBLISHER OF DAIRY WORLD.

These Terms and Conditions ("Terms") govern the use of Dairy World, its online features, multiplayer, profiles, social functions, virtual items, advertisements and related services (collectively, the "Services"). The Services are provided by Markus Teljomaa, an independent publisher operating under the name Telmark Studios ("Publisher," "we," "us" or "our"). Telmark Studios is a publishing name and not a separate legal entity.

BY ACCEPTING THESE TERMS OR USING THE SERVICES AFTER VALID ACCEPTANCE, YOU AGREE TO BE BOUND BY THEM. IF YOU DO NOT AGREE, DO NOT USE THE SERVICES. The accompanying Dairy World End User License Agreement ("EULA") governs the Game software.

Publisher contact	Details
Contracting publisher identity	Markus Teljomaa, independently publishing as Telmark Studios
Brand	Telmark Studios; currently a private-person publisher
Country of establishment	Finland
Initial distribution region	European Economic Area (EEA), including Finland
Business ID and public register, if applicable	Individual publisher; no company publisher has been declared
Public geographic postal address	Leikosaarentie 28B 59, 00990 Helsinki, Finland
Support and legal email	contact@telmarkstudios.com
Contact telephone	+358 50 501 7400
Public privacy notice	https://www.telmarkstudios.com/dairy-world/privacy/

1. AGREEMENT AND AVAILABILITY

1.1. The initial Services are offered in Finland and the other EEA countries (EU Member States, Iceland, Liechtenstein and Norway). The United Kingdom, Switzerland and other markets are not included in the initial distribution. We may determine which Services and features are offered in each market, subject to applicable law.

1.2. These Terms, the EULA and any specific terms shown with an available purchase form the agreement governing the relevant use or transaction. Specific purchase terms prevail for the particular product purchased. We may introduce additional terms for new features and obtain acceptance when required.

1.3. You are responsible for ensuring that your device, internet connection and account meet the requirements stated for the relevant feature. We do not provide or pay for third-party connectivity, device maintenance or app-store services.

1.4. The Services are provided for personal entertainment. No account, virtual item, ranking, feature or competitive result creates an employment, investment, partnership, fiduciary or financial relationship with us.

2. ELIGIBILITY AND PARENTAL RESPONSIBILITY

2.1. The Game is intended for players aged 13 and above, subject to applicable ratings and feature restrictions. You must provide truthful age and account information when requested and must not circumvent age restrictions or parental controls.

2.2. If you lack the legal capacity to accept these Terms, a parent or legal guardian must review and accept them on your behalf where required. An adult accepting on behalf of a minor represents that the adult is authorised to do so.

2.3. PARENTAL RESPONSIBILITY. A parent or legal guardian who authorises a minor to use the Services and accepts these Terms on the minor's behalf agrees to supervise that use and to take reasonable measures to ensure compliance with these Terms. **TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW**, that adult is responsible for the minor's conduct and for purchases, charges and payments made or authorised by the adult, or otherwise legally attributable to that adult, including through payment accounts or devices under the adult's control.

2.4. Parents and guardians are responsible for controlling access to their devices, payment credentials and accounts, including the use of available purchase approvals and parental controls. We may restrict access to age-sensitive features where verification or additional authorisation is necessary.

3. ACCOUNTS AND PLAYER PROFILES

3.1. You must maintain the confidentiality of your credentials, purchase-account information and verification codes. You must not sell, rent, share, transfer or otherwise make an account available to another person without our prior written permission.

3.2. We may assign a unique player identifier and display your chosen profile name, avatar, cosmetics, competitive results and rankings to other players. You must not include private information about yourself or others in publicly displayed profile fields.

3.3. We may reject, change or remove account names, profiles or content that violate these Terms, interfere with operations or expose users to harm. Accounts remain subject to our security, anti-abuse and moderation systems.

3.4. Some Game progress and consumables are stored locally. Loss of a device, deletion, reinstalling, changing accounts or moving between stores may cause unrecoverable progress or spent items. No cross-device, cross-platform, cloud-backup or recovery feature is promised unless expressly offered.

3.5. You must promptly report suspected unauthorised access. We may take protective actions, including temporary access restrictions, credential resets and investigation of suspicious activity.

4. PROHIBITED USE

4.1. You must not, whether personally or through another party:

(a) cheat, manipulate competitive results, use bots or unauthorised automation, falsify purchases, alter inventory, duplicate rewards or exploit software defects;

(b) reverse engineer or modify network requests, impersonate the Game client or gain unauthorised access to accounts, databases, servers or services;

(c) distribute malware, overload systems, scrape confidential information or interfere with the Services or other users;

(d) harass, threaten, defame, impersonate, stalk, sexually exploit or otherwise abuse another player;

(e) publish unlawful, infringing, hateful, sexually explicit or otherwise prohibited content, or disclose another person's private information;

(f) solicit private information from children, engage in fraud, or use the Services to facilitate unlawful activity;

(g) sell, exchange or transfer accounts, virtual items or virtual currency outside a feature expressly authorised by the Game; or

(h) organise cash betting, real-money prizes or unauthorised money exchanges through the Services.

4.2. We may employ server-side verification, anomaly detection, moderation, rate limits, anti-cheat measures and other reasonable protective controls. You must not evade a suspension or interfere with these controls.

4.3. We reserve all rights and remedies against unlawful use, fraud, security attacks, infringement and material breaches of these Terms.

5. SOCIAL FEATURES AND USER CONTENT

5.1. Friends, Herds, messages, profiles and heart gifts are available only where supported in the Game. Any gift or transfer must use the relevant authorised feature. Herd chat is for adults only. Other chat features may be restricted according to age, account status, territory or safety requirements.

5.2. You are solely responsible for the content that you submit, publish or transmit ("User Content"). You represent that you hold all necessary rights to submit it and that it does not infringe the rights of others or violate these Terms.

5.3. For User Content that you make publicly available through the Services ("Public User Content"), you grant us a non-exclusive, worldwide, royalty-free, transferable and sublicensable licence to host, reproduce, adapt, format, transmit, display, translate and distribute that Public User Content for operating, administering, maintaining, moderating, securing and promoting the Services, subject to the Privacy Notice and applicable law. Notwithstanding any other provision of these Terms, the licence to private chat messages is limited to hosting, reproducing, transmitting, displaying and otherwise processing those messages as necessary to operate the messaging service, maintain its security and moderate content, subject to the Privacy Notice and

applicable law. Private chat messages are not licensed for advertising or promotional use. These licences last for as long as needed for the applicable purposes and any lawful retention period.

5.4. We may monitor, filter, moderate, restrict visibility of, or remove User Content, accounts, messages or social features for safety, security, technical or rule-enforcement reasons. We may review reports and take enforcement action at our discretion within applicable requirements. We do not guarantee that all offending content will be detected or removed immediately.

5.5. We may use suggestions, ideas, feedback, feature requests and other unsolicited proposals you submit without payment, attribution or obligation to implement them. You warrant that you are entitled to submit the material. No submission is confidential unless we expressly agree otherwise in writing.

6. MULTIPLAYER AND COMPETITIVE FEATURES

6.1. Quick Match and custom matches are free to enter under the currently offered rules. Free participation does not exempt you from the heart consumption or other gameplay rules displayed in the Game. There are no cash-out winnings or real-money prize pools.

6.2. Multiplayer depends on third-party networks, compatible Game versions, active users and operational infrastructure. WE DO NOT GUARANTEE THE AVAILABILITY OF AN OPPONENT, A MATCH, A PARTICULAR WAITING TIME, A RESULT, A RANK OR CONTINUOUS MULTIPLAYER ACCESS.

6.3. You accept the applicable match rules, scoring methods, tie-breakers and deadlines displayed in the Game. Leaving, disconnecting or failing to complete a match may result in a forfeit. We may invalidate, recalculate, reverse or remove results, rewards and rankings affected by cheating, exploits, errors or rule violations.

6.4. We may modify competitive mechanics, rewards, rankings, seasons, scoring systems and matchmaking prospectively for balance, fairness, technical operation, security or economic sustainability. We do not guarantee any future competition, season, title or reward unless expressly included in a completed purchase offer.

7. VIRTUAL ITEMS AND IN-GAME CURRENCY

7.1. Gold, coins, hearts, power-ups, cosmetics, characters and other in-game benefits ("Virtual Items") are limited-purpose, revocable digital entitlements, not property, money, deposits, investments or cash-equivalent instruments. They cannot be cashed out, sold, pledged, traded or transferred, except through an expressly authorised in-game function.

7.2. Virtual Items have no independent cash value. Purchasing Virtual Items does not transfer any ownership or intellectual-property rights in the Game. Their quantities, duration, use and availability are governed by the relevant purchase offer and Game rules.

7.3. We may change the availability, earning rates, conversion methods, balancing, pricing and functionality of Virtual Items prospectively for the operational reasons specified in Section 10. We may remove duplicated, erroneously credited, fraudulently obtained or refunded entitlements and correct affected balances.

7.4. A Virtual Item described as non-expiring is not a guarantee of perpetual online hosting, future compatibility or indefinite provision of the underlying Game. A virtual balance does not create a cash debt owed by us.

7.5. Free and advertisement-supported reward features may involve chance. Visual animations do not guarantee any particular prize. No paid random spin, paid loot box or cash prize is offered under these Terms.

8. PURCHASES, SUBSCRIPTIONS AND REFUND POLICY

8.1. Available purchase offers identify the digital content, applicable price, quantity or duration and any material conditions. Purchases are processed through an authorised checkout and are subject to the terms presented at purchase and applicable store rules.

8.2. ALL PURCHASES ARE FINAL. WE DO NOT OFFER VOLUNTARY REFUNDS, RETURNS OR MONEY-BACK GUARANTEES. Refunds, reversals and cancellations are provided only where required by applicable law, binding store terms or an express purchase offer. Abandoning the Game, losing a match, changing preferences or a free feature becoming unavailable does not create an additional refund entitlement.

8.3. Consumable products are consumed on use. Purchased timed benefits begin and expire according to their offer. We may change prices for future offers without retroactively charging for an existing purchase.

8.4. If a subscription is offered, it renews at the disclosed interval unless cancelled through the relevant payment provider's cancellation method. Deleting the Game does not cancel the subscription. A subscription does not promise a particular opponent or queue time.

8.5. We may verify purchases, delay entitlement delivery pending verification, revoke entitlements associated with refunded or fraudulent transactions, and correct resulting balances. We may refuse additional transactions where there is credible fraud, abuse or payment-security concern.

8.6. Statutory distance-selling information, including applicable withdrawal instructions, is supplied with the relevant checkout and accompanying purchase information rather than repeated in these Terms.

9. ADVERTISING

9.1. The Game may offer optional advertisements in exchange for in-game rewards. A reward is earned only after the qualifying action has been completed under the offer's conditions and the reward has been validated.

9.2. We do not guarantee the availability of advertising inventory, particular advertisements or a continuous opportunity to earn ad-supported rewards. Advertising formats may vary by version, market and user eligibility.

9.3. Information about advertising-related personal-data processing is contained in the Privacy Notice and applicable consent interfaces.

10. CHANGES, SERVICE AVAILABILITY AND DISCONTINUATION

10.1. THE SERVICES ARE PROVIDED ON AN "AS AVAILABLE" BASIS. We do not undertake to provide 24-hour availability, guaranteed uptime, a specified server capacity, continual matchmaking, indefinite support or future releases, except for obligations expressly assumed in a paid offer.

10.2. We may modify, update, replace, restrict, temporarily suspend or permanently discontinue any feature or Service for the following reasons:

(a) security, fraud prevention, player safety, abuse or protection of systems;

(b) fixing defects, responding to exploits or maintaining game balance and competitive integrity;

(c) changes to technical infrastructure, service providers, devices, operating systems or app-store requirements;

(d) legal, regulatory or contractual requirements; or

(e) economic or operational unsustainability, including rising hosting, maintenance, moderation or compliance costs, insufficient revenue, inability to obtain necessary services, illness, incapacity or insufficient resources to operate safely.

10.3. We may immediately suspend affected functionality where reasonably necessary to respond to an urgent threat, breach, provider failure or legal requirement. Notices will be provided where required.

10.4. Upon service closure, multiplayer, leaderboards, cloud features, downloads, messages, virtual-item functionality and purchase restoration may cease. We have no additional contractual obligation to provide replacement servers, source code, a migration service, perpetual downloads or a newly developed offline edition. Rights to a lawfully retained and functional offline copy are addressed in the EULA.

10.5. Termination of a free feature does not create a contractual obligation to repay unrelated prior purchases. Treatment of any affected paid commitment is governed by the relevant purchase contract and applicable law.

11. ENFORCEMENT, SUSPENSION AND TERMINATION

11.1. If we reasonably suspect cheating, fraud, abuse, intellectual-property infringement, unauthorised access, harmful content or another material violation, we may immediately restrict an account or relevant feature, withhold disputed rewards, investigate activity, reverse illegitimate results or disable communication facilities.

11.2. We may suspend or terminate access for a serious or repeated material breach, unlawful conduct, credible security threats or continued abuse. We may preserve evidence and disclose relevant information where lawfully required for enforcement, safety or legal proceedings.

11.3. We may remove abusive content, invalidate rankings and revoke fraudulently obtained or refunded entitlements. We may use technical records, transaction data and match logs as evidence in our decisions, subject to applicable law.

11.4. We may close or discontinue Services for the reasons in Section 10 independently of any user violation. Uninstalling the Game does not cancel a subscription or constitute a refund request.

12. INTELLECTUAL PROPERTY

12.1. All rights, title and interest in the Game, its code, graphics, animations, sounds, music, characters, text, names, logos, game worlds and other protected material belong to us or their respective licensors.

12.2. We grant no intellectual-property rights except the limited permissions expressly stated in the EULA or an authorised purchase. You must not extract, reproduce, publish, distribute, sell, license or otherwise commercially exploit protected Game materials without the relevant rights holder's permission.

12.3. Use of the Game or Services grants no right to register, imitate or challenge ownership of our protected names, logos, branding or other rights by misrepresentation or bad-faith conduct.

13. DISCLAIMER OF WARRANTIES AND LIMITATION OF LIABILITY

13.1. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE SERVICES, GAME FEATURES AND VIRTUAL ITEMS ARE PROVIDED "AS IS" AND "AS AVAILABLE," WITHOUT ANY WARRANTIES, EXPRESS OR IMPLIED, OTHER THAN SPECIFIC EXPRESS WARRANTIES IN A PURCHASE OFFER.

13.2. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, WE DISCLAIM ALL LIABILITY FOR ANY LOSS, DAMAGE, CLAIM, COST OR EXPENSE ARISING OUT OF OR RELATED TO THE GAME OR SERVICES, INCLUDING LOST PROFITS, LOST REVENUE, BUSINESS INTERRUPTION, LOSS OF DATA OR PROGRESS, LOSS OF VIRTUAL ITEMS, SERVICE INTERRUPTION, THIRD-PARTY CONDUCT, DEVICE OR NETWORK FAILURE, AND DIRECT, INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, PUNITIVE OR CONSEQUENTIAL DAMAGES.

13.3. WHERE ANY LIABILITY CANNOT BE EXCLUDED BUT MAY BE LAWFULLY LIMITED, OUR TOTAL AGGREGATE LIABILITY TO A USER FOR ALL CLAIMS ARISING OUT OF OR RELATING TO THE GAME OR SERVICES IS LIMITED TO EUR 1.00 (ONE EURO) IN ANY TWELVE-MONTH PERIOD.

13.4. We are not responsible for an event beyond our reasonable control, including third-party platform failures, network outages, governmental restrictions, natural disasters, widespread cyberattacks or interruptions caused by circumstances we could not reasonably prevent or overcome.

13.5. The disclaimers and limits in this Section apply to the maximum extent permitted by applicable law.

14. USER RESPONSIBILITY AND INDEMNIFICATION

14.1. You are responsible for your unlawful acts, material breaches, fraudulent transactions, infringements of third-party rights and deliberate interference with the Services.

14.2. USER INDEMNIFICATION.

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, you agree to indemnify, defend and hold harmless the Publisher against third-party claims, damages, losses, liabilities, expenses and reasonable legal costs arising from or attributable to:

(a) your material breach of these Terms or the EULA;

(b) your intentional, reckless or negligent conduct in connection with the Services;

(c) fraud, cheating, manipulation, unauthorised access, security violations or interference with the Services;

(d) infringement of intellectual-property, privacy or other legally protected rights of third parties; or

(e) your unlawful use of the Game or Services.

Such indemnification applies to the extent the relevant claim or loss is legally attributable to your conduct.

14.3. PARENTAL AND GUARDIAN LIABILITY.

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, a parent or legal guardian who accepts these Terms on behalf of a minor assumes responsibility for supervising the minor's use of the Services and ensuring compliance with these Terms.

The parent or guardian agrees to indemnify and hold harmless the Publisher against claims, damages, losses, liabilities and reasonable legal costs arising from the parent's or guardian's breach of these obligations or from conduct, transactions and purchases of the minor for which the parent or guardian is legally responsible.

This includes authorised purchases, misuse of payment credentials attributable to the parent or guardian, and other legally attributable misconduct or breaches of these Terms.

15. PRIVACY

15.1. The collection and processing of personal data is described in our Privacy Notice.

15.2. You agree to provide accurate account information and must not submit personal information about others without authority. Security monitoring, purchase verification and moderation may involve technical information as described in the Privacy Notice.

16. AMENDMENTS AND RESERVED RIGHTS

16.1. RESERVATION OF RIGHTS. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, WE RESERVE THE RIGHT, AT OUR SOLE DISCRETION, TO MODIFY, AMEND, SUPPLEMENT, REPLACE OR WITHDRAW THESE TERMS, IN WHOLE OR IN PART, WHENEVER WE CONSIDER IT NECESSARY OR APPROPRIATE for any of the following reasons:

(a) changes in applicable laws, regulations, authority decisions, app-store policies or contractual obligations;

(b) security, fraud prevention, anti-cheat enforcement, content moderation, user safety or the prevention of abuse;

(c) changes in the Game, its features, functionality, technical architecture, supported devices, integrations or distribution methods;

(d) changes in hosting, licensing, moderation, development, maintenance, payment-processing or other operating costs, service-provider arrangements, available resources or the economic sustainability of the Services;

(e) changes in game balance, competitive systems, virtual-item mechanics, advertising, monetisation methods or the structure of new or ongoing Services, as addressed in Sections 7, 8 and 10; or

(f) corrections, clarifications, restructuring, administrative changes or the introduction, replacement or discontinuation of Services.

16.2. EFFECTIVE DATE AND ACCEPTANCE. We determine the content and proposed effective date of revised Terms. We may publish revised Terms in the Game or on our website, provide notices through available contact channels and require acceptance of the revised Terms as a condition of continued access to the affected Services. We will give advance notice, obtain acceptance or provide other procedures where

required by applicable law. Where acceptance is required and is not given, we may restrict future access to the affected Services.

16.3. FUTURE OPERATION. Revised Terms govern use of the affected Services from their applicable effective date or valid acceptance, as appropriate. Changes to Game features, future offers, prices and other operational matters are additionally governed by Sections 7, 8 and 10. A revision does not retroactively impose a charge or alter the agreed terms of a completed purchase except through an applicable legal or contractual process.

16.4. NO WAIVER. Our decision not to exercise a modification or enforcement right on one occasion does not prevent us from exercising it later. If a particular amendment is ineffective, the remaining provisions continue to apply to the maximum extent permitted by law.

17. GOVERNING LAW AND GENERAL TERMS

17.1. These Terms are governed by Finnish law. Courts with jurisdiction under applicable law may hear disputes. We do not consent to a forum or alternative dispute procedure beyond one that applies by law or to which we expressly agree.

17.2. We may transfer or assign the Services or this agreement to a successor or third party, subject to applicable law. You may not assign or transfer your account or these Terms without our prior written consent.

17.3. Our failure to enforce a provision is not a waiver. Headings are for convenience. The invalidity of one provision does not invalidate the remainder. These Terms, the EULA and specific purchase terms constitute the agreement for the matters they govern.

17.4. Notices and disputes concerning the Services may be sent to contact@telmarkstudios.com. We do not undertake any additional contractual service-level commitment beyond those expressly stated in an available purchase offer.